Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
EASTERN SAMAR DISTRICT ENGINEERING OFFICE
Brgy. Alang-alang, Borongan City

BAGONG PILIPINAS

CONTRACT FORM

MARIA DAISY A. MADEJA
End-User/Construction Section

ROLANDO C. ROSAROSO
Accountant III

As to availability of Funds:

JASMIN FRAXIDES V. LABASBAS
Corporate Treasurer

CONTRACTOR:

JEHELA G. ROXAS
District Engineer

Government of the Philippines
Department of Public Works and Highways

CONTRACT FOR Contract ID: 25IB0100 (Re-advertised) - Network Development Program Road Widening Secondary Roads Wright-Taft-Borongan RD, (S00172SM) K0873+471 – K0875+667 Brgy. Binaloan – Brgy. Malinao, Taft, Eastern Samar

This CONTRACT executed on the _____ day of 10 MAR 2026 by and between:

DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS Eastern Samar District Engineering Office (DPWH-ESDEO) with principal office address at Brgy. Alang-alang, Borongan City, Eastern Samar, a government agency of the Republic of the Philippines, hereinafter called "the Entity";

-and-

PABLO S. LABASBAS CONSTRUCTION CORPORATION a company duly organized and existing under the laws of **Calbayog City**, with principal office at Brgy. Dagum, Calbayog City, hereinafter called "the Contractor".

WHEREAS, the Entity invited Bids for certain goods and services/works/consulting services, particularly **Network Development Program Road Widening Secondary Roads Wright-Taft-Borongan RD, (S00172SM) K0873+471 – K0875+667 Brgy. Binaloan – Brgy. Malinao, Taft, Eastern Samar**;

WHEREAS, the Contractor submitted a responsive bid and was awarded the contract for the procurement in the total amount of **EIGHTY MILLION SEVEN HUNDRED SIX THOUSAND THREE HUNDRED SIX PESOS AND 17/100 ONLY (Php 80,706,306.17)**, hereinafter referred to as the "Contract Price."

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree as follows:

1. Unless otherwise stated, terms and expressions used in this Contract shall have the same meanings as those assigned to them in the Conditions of Contract, which form an integral part of this Contract.

2. The following documents as required by the Implementing Rules and Regulations of Republic Act No. 12009 shall form part and be read and construed as integral parts of this Contract, *viz.*:

   a. Philippine Bidding Documents (PBD);

   - *For Procurement of Infrastructure Projects*

     i. Drawings/Plans;
     ii. Scope of Work;
     iii. Invitation to Bid;
     iv. Instructions to Bidders;
     v. Bid Data Sheet;
     vi. Bid Form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any,
     resulting from the Procuring Entity's bid evaluation;
     vii. Bill of Quantities;
     viii. General and Special Conditions of Contract;

     ix. Supplemental Bid Bulletins, if any; and

x. Other contract documents that may be required by existing laws and/or the Entity.

b. Winning bidder's bid, including the Eligibility Requirements, Technical and Financial Proposals, and all other documents or statements submitted;

c. Performance Security;

d. Notice of Award of Contract; and the Bidder's Conforme thereto; and

e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBD, such as but not limited to the Notice to Proceed and Warranty Security.

3. In consideration of the Contract Price of **EIGHTY MILLION SEVEN HUNDRED SIX THOUSAND THREE HUNDRED SIX PESOS AND 17/100 ONLY (Php 80,706,306.17)**, or such other sums as may be determined in accordance with the terms of the Contract, the Contractor agrees to deliver and perform the items and related services for the **Network Development Program Road Widening Secondary Roads Wright-Taft-Borongan RD, (S00172SM) K0873+471 – K0875+667 Brgy. Binaloan – Brgy. Malinao, Taft, Eastern Samar** described herein in accordance with the terms and conditions specified in the Contract and its annexed documents.

4. The **DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS Eastern Samar District Engineering Office (DPWH-ESDEO)** agrees to pay the above-mentioned sum to the Contractor in accordance with the schedule and manner provided in the Bidding Documents and its annexes.

5. Any dispute, difference, or claim arising out of or relating to this Contract, including its existence, validity, interpretation, breach, or termination thereof, may be submitted to arbitration or other form of alternative dispute resolution in accordance with the applicable law, such as Republic Act No. 9285 (Alternative Dispute Resolution Act of 2004) or Executive Order No 1008, series 1985 (Construction Industry Arbitration Law).

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

For the Procuring Entity
Head of the Procuring Entity or
Duly Authorized Representative

JEHELA G. ROXAS
District Engineer
PRC No.: 0121034
Date:

For the Bidder
Duly authorized to sign the Contract for and behalf of **PABLO S. LABASBAS CONSTRUCTION CORPORATION**:

JASMIN FRAXIDES V. LABASBAS
Corporate Treasurer
Tin#: 008356932000
Date:

Signed in the presence of:

ROLANDO C. ROSAROSO
Accountant III
As to availability of Funds

MARIA DAISY A. MADEJA
End/User-Construction Section

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in the _____, City/Province of _____, this _____ day of 10 MAR 2026, 20_____, personally appeared the above-named persons who have satisfactorily proven to me their identity, through their identifying documents written below their names and signatures, that they are the same persons who executed and voluntarily signed the foregoing instrument consisting of ____ pages, including this page where this Acknowledgement is written, which they acknowledged before me as their free and voluntary act and deed.

WITNESS MY HAND AND SEAL this ___ day of 10 MAR 2026.

NAME OF NOTARY PUBLIC
Notarial Commission No.
Notary Public for until
Roll of Attorneys No.
PTR No.
IBP No.

ATTY. ALBERT GUNDA AZUKA
NOTARY PUBLIC
Notarial Commission No. until December 31, 2025
Roll of Attorneys No. 67165
IBP No. AR No.594232; 1-13-2026; Eastern Samar
PTR No. 3394599, 1-5-2026/ Borongan City
MCLE Compliance No. VIII-0014471
Brgy. Alang-alang, Borongan City, Eastern Samar

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As to availability of Funds:

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Corporate Treasurer

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Department of Public Works and Highways

JEHELA G. ROXAS
District Engineer